

I. REPORT

1. Under Deliberation/2024/137, dated March 25, 2024, the National Data Protection Commission (CNPD) applied an urgent corrective measure of limitation of processing, ordering the Worldcoin Foundation to refrain from collecting iris, eye, and facial data in the national territory for a maximum period of 90 (ninety) days.
2. The CNPD acted in pursuit of the powers provided for in subparagraphs a), h), and i) of paragraph 1 of Article 57 and subparagraph b) of paragraph 1 of Article 58 of Regulation (EU) 2016/679, of April 27, 2016 - General Data Protection Regulation (GDPR) - in conjunction with the provisions of Article 3, paragraph 2 of Article 4, and subparagraph b) of paragraph 1 of Article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order (GDPR Implementation Law) and under the corrective powers provided for in paragraph 2 of Article 58 of the GDPR.
3. This Commission acted following several reports received and conducted evidentiary diligence, having ascertained that the WorldCoin Foundation was processing biometric data (images of the iris, eyes, and face) on a large scale for different purposes, among which the creation of a digital identity proof, designated as World ID, stands out, and the fact that the provision of such biometric data by citizens is an indispensable condition for receiving a value in cryptocurrency, designated Worldcoin (WLD).
4. Notified of the content of Deliberation/2024/137, the Worldcoin Foundation, pursuant to Articles 184 to 191 of the Code of Administrative Procedure, submitted an Administrative Complaint, where it alleged, in summary, that:
 - a) It has been in dialogue with the supervisory authorities, “in particular, with the Bayerisches Landesamt für Datenschutzaufsicht (“BayLDA”), the supervisory authority of the state of Bavaria, Germany, which, as will be seen in greater detail below, is the main supervisory authority¹ regarding the Worldcoin Project [...]”;
 - b) “the Worldcoin Foundation has responded to all requests for information that have been presented to it by the CNPD since August 2023”;

¹ Underlined in the original.

 - c) “it submitted to the CNPD, on April 2, 2024, a set of information regarding corrective measures that it would apply to the Worldcoin Project”;
 - d) “It is also in this spirit of collaboration that the Worldcoin Foundation brings to the CNPD some clarifications regarding the facts that supported the CNPD's decision to proceed with the temporary limitation of the processing of personal data in Portugal”;
 - e) It also brings “new facts, resulting from changes introduced in the project”; “[which, it believes, will be relevant for the CNPD to conclude that the measure of temporary limitation of the processing of the aforementioned data is unnecessary and disproportionate” “[and should be lifted accordingly.”;
 - f) “with this Complaint, they intend to essentially demonstrate the reasons that make the precautionary measures applied by the CNPD unnecessary – and other measures that may eventually be applied in the future – not intending to focus, at this moment, on the discussion of the potential compliance or non-compliance with the rules provided for in the GDPR.”;
 - g) “The Worldcoin Foundation is a non-profit organization, established on October 31, 2022, in the Cayman Islands.”;
 - h) The Worldcoin Foundation, “[is] an organization that has no owners or shareholders”;
 - i) “Since the launch date of the Worldcoin Project, on July 24, 2023, the Worldcoin Foundation has assumed the role of data controller regarding the personal data processed in relation to the World ID,” having “[d]efined the purposes and means of the respective processing activities.”;
 - j) “TFH is responsible for the processing not only concerning the data processed within the World App but also regarding the personal data related to the World ID collected before July 24, 2023, that is, during the beta testing phase.”;
 - k) “only with the launch of Worldcoin, on July 24, 2023, did such data begin to be collected and processed on behalf of the Worldcoin Foundation and according to its instructions.”;

l) “TFH is responsible for the processing concerning the personal data related to the World App and regarding the data related to the World ID that have been collected before” [July 24, 2023], “[being a subcontractor of the Worldcoin Foundation only concerning the personal data related to the World ID that have been collected after the launch of Worldcoin, on July 24, 2023.”;

1v.

AVG/2023/1205

m) “The Worldcoin Foundation acquired, in September 2023, a company based in Bavaria, Germany, specifically at Henkestraße 91, 91052 Erlangen – ZipCode GmbH (“ZipCode”);

n) “ZipCode is wholly owned by the Worldcoin Foundation, being its subsidiary”;

o) “ZipCode actively participates in the data processing operations carried out by the Worldcoin Foundation, acting as one of the parties involved in the use of SMPC encryption”;

p) “With respect to this processing of personal data, ZipCode is a subcontractor of the Worldcoin Foundation”;

q) the Worldcoin Foundation entered into a Data Processing Agreement with ZipCode on 14.03.2024, aiming to regulate the processing of personal data carried out on its behalf in the context of the services provided”;

r) “The facts outlined above are relevant to understanding the reason that led the Bavarian State Data Protection Authority - BayLDA - to assume the role of the main supervisory authority, considering ZipCode as the sole establishment of the Worldcoin Foundation in the European Union.”;

s) “The maintenance of the provisional measure adopted through the Deliberation, and until a final decision is made, namely within the institutional framework of the role of the various supervisory authorities mentioned at the beginning of this request, prevents [Worldcoin] from continuing its activity in Portugal, which it intends [...] to do, resuming, as soon as possible, its operation in Portuguese territory, which will already adopt the corrective measures identified above, without prejudice to its full availability to continue [...] collaborating with the CNPD and with other supervisory authorities.”

t) “Requests the revocation of Deliberation/2024/137, of March 24, 2024, which determined the temporary limitation of the processing of biometric data in the national territory for a period of 90 (ninety) days.”

5. Attached 9 documents.

2

AVG/2023/1205

II. REASONING

i. Preliminary Issue

6. From the elements contained in the records, relevant to the decision, it was found that:

7. On August 11, 2023, an inspection was carried out, following a mandate from the National Data Protection Commission, dated the same day, to verify, in the national territory, the processing of personal data carried out by the WorldCoin Foundation, by World Assets, Ltd., by Tools for Humanity Corporation and their affiliates, or by any other company involved in the Worldcoin Project with relevance to the processing of personal data, within the scope of the assignments and powers provided for in paragraph 1 of Article 58 of the GDPR and in the combined provisions of Article 3, paragraph 2 of Article 4, and item b) of paragraph 1 of Article 6, all of Law No. 58/2019, of August 8.

8. Following this inspection carried out on August 11, 2023, within the scope of Process AVG/2023/1205, a message was sent on August 23 to the Worldcoin Foundation, through its Regional Growth Manager – Europe, to the address Ricardo.macieira@worldcoin.org, in which the following question was posed first: “Does the ‘Worldcoin Foundation’ have any establishment in the EU/EEA? If so, please send a document proving the identification, which includes contact details. If not, have you designated a representative in the sense of Article 27 of the GDPR? Please send a document proving the identification, which includes the respective contact details.”

9. From the response received, and evaluated the documents sent, there is no reference in them to the existence of the company ZipCode GmbH.

10. On March 6, 2024, a request was received at the CNPD indicating that the Bayerisches Landesamt für Datenschutz (“BayLDA”) would be the “main data protection authority of TFH.”

11. On March 25, 2024, the CNPD adopted Deliberation/2024/137 ordering the “Worldcoin Foundation to, within a maximum period of 24 (twenty-four) hours, proceed with the temporary limitation of the processing of biometric data, regarding the operation of collecting iris, eye, and face data, in the national territory (Continental Portugal, Autonomous Region of Madeira, and Autonomous Region of the Azores), for a period of 90 (ninety) days.”

12. On April 2, 2024, a communication was received, addressed to the CNPD, sent by the Data Protection Officer of Worldcoin, Jannick Preiwisch, through the email address dpo@worldcoin.org, in English.

13. After requesting the sending of this information in Portuguese, the language of the process, it was sent to the CNPD and from its analysis it was found that, in point 5, it is stated that “under the terms of Article 56, paragraph 1 of the GDPR, in the EU, BayLDA is the main supervisory authority of the project. The basis for its leadership status seems clear. The initial participating company that launched Worldcoin, Tools for Humanity, was co-founded by a group of former researchers from the Max Planck Institute in Erlangen, Bavaria. Tools for Humanity, which still provides services to the project, has long had its sole establishment in the EU in Erlangen and was registered with BayLDA back in March 2021. When the administration of the project passed to the Worldcoin Foundation in mid-2023, the Foundation also established its sole establishment in the EU, ZipCode GmbH (“ZipCode”), in Bavaria. ZipCode provides software development services and plays a decisive role in the processing of personal data of the project. Without the contributions of these EU establishments, both in terms of system design and practical execution, the processing of personal data of the project would not be taking place in its current form.”

14. On April 15, 2024, an “Administrative Complaint” was filed against Deliberation/2024/137 of the CNPD.

15. From this “Administrative Complaint,” in point 2,

It is asserted that there is a main supervisory authority, namely it is defended that the “Bayerisches Landesamt für Datenschutzaufsicht (“BayLDA”), the supervisory authority of the state of Bavaria, Germany, [...] is the main supervisory authority² regarding the Worldcoin Project under Article 56, paragraph 1, of the GDPR.”

16. In order to substantiate such a statement, it is asserted in point 29 of the “Administrative Complaint” that “[the] Worldcoin Foundation acquired, in September 2023, a company based in Bavaria, Germany, specifically at HenkestraBe 91, 91052 Erlangen – ZipCode GmbH (“ZipCode”).

17. In point 38 of the “Administrative Complaint,” it is stated that the “Bavarian State Supervisory Authority - the BayLDA [assumed] the role of main supervisory authority, considering ZipCode as the sole establishment of the Worldcoin Foundation in the European Union.”

18. In a request received by the CNPD on April 17, 2024, a translation of a response sent to the Bayerisches Landesamt für Datenschutz (“BayLDA”) is submitted, where it is mentioned that the BayLDA inquired “about the role of ZipCode GmbH, the Foundation's subsidiary in Bavaria - in fact, the only establishment of the Foundation in the European Economic Area (EEA). In summary, ZipCode has played a central role in the design of the Foundation's strategy regarding the capabilities (objectives) of the World ID and in the design of the technical system for implementing that strategy (means).” “Namely, ZipCode has contributed significantly to the Orb verification process, including the associated data processing. At a strategic level, the administration of ZipCode has been fully involved in all relevant decisions regarding data processing in the context of the Orb verifications. In recent months, this has been especially the case for the design and architecture of the new SMPC configuration, in which ZipCode participated and actively contributed to dedicated research sessions, namely planning. The new system design would not have been adopted had ZipCode not confirmed that it would constitute an effective way to achieve the project's objectives.” “More specifically, ZipCode's contribution is also manifested in terms of drafting and reviewing the technical specifications used in the open-source protocol of the World ID and in the Orb verification mechanism of the World ID. These contributions translate into the fact that, only this year, ZipCode has already recorded 134 unique code contributions on GitHub for the Worldcoin infrastructure. Furthermore, the Management of ZipCode participates in various recurring meetings that determine the technological specifications for the Orb verification process [for example, daily SMPC synchronization (30 minutes), weekly

engineering synchronization (2 hours), weekly leadership synchronization (2 hours)]. This shows that the specifications for the technical configuration of the current Orb verification process were developed by the Worldcoin Foundation in such close collaboration with ZipCode that the individual contributions can no longer be separated.” “In summary, ZipCode's activities are inextricably linked to all aspects of the Orb verification system, including the associated processing of personal data. The code used in the unique feature services and in the proof of the World ID enables the execution of the Orb verification, and the processing specifications were developed in close collaboration. It is not an exaggeration to say that the system would be fundamentally different if ZipCode had not participated in its design.”

19. Furthermore, it is stated that “the Worldcoin Foundation decided to implement its part of the data processing for the SMPC configuration through its sole establishment in the EEA, ZipCode.” and that “The original and updated versions of the SMPC system were largely conceived by ZipCode, further highlighting ZipCode's essential role in determining the means and purposes of data processing.”

20. From the above statements, namely the assertion that the “Bayerisches Landesamt für Datenschutz (“BayLDA”) would be the “main data protection authority of TFH.” And after the assertion that “Tools for Humanity, which still provides services to the project, has long had its sole establishment in the EU in Erlangen and was registered with the BayLDA as early as March 2021. When the project administration transferred to the Worldcoin Foundation in mid-2023, the Foundation also established its sole establishment in the EU, ZipCode GmbH (“ZipCode”), in Bavaria. ZipCode provides software development services and plays a decisive role in the processing of personal data of the project.”, the question arose as to whether there is in the space 3v.

AVG/2023/1205

European more than one establishment, considering that Tools for Humanity BmgH and ZipCode GmbH, as well as to ascertain whether the role that the company ZipCode GmbH plays is, despite being identified as “single establishment in the EU,” that of Representative in the sense of paragraph 17) of Art. 4,° of the GDPR.

21. Thus, on May 9, 2024, the CNPD questioned the Worldcoin Foundation to clarify before the CNPD whether

ZipCode GmbH acted as a representative of the Worldcoin Foundation, in which case it should provide the “written document designating it, or whether the decisions regarding the purpose and means of the aforementioned processing are made by ZipCode GmbH.”

22. On May 14, a new request was submitted by Worldcoin, in which there was no reference to the capacity in which ZipCode GmbH acted.

23. On May 17, in response to the request for clarification of ZipCode's role, it was stated by the Worldcoin

Foundation that ZipCode does not act as a representative of the Worldcoin Foundation, nor determines the purposes and means of processing related to World ID.

24. It is stated, as clarified in the response sent to Bayerisches Landesamt für Datenschutz (“BayLDA”), which questioned the Worldcoin Foundation “about what was the role of ZipCode GmbH, the subsidiary of the Foundation in Bavaria,” where it declares that ZipCode GmbH is “in

fact, the only establishment of the Foundation in the European Economic Area (EEA)."

25. Given the information collected and based on the analysis made, it is necessary, before any other step and

as a preliminary question, to assess whether it is admissible, in light of the rules present in the GDPR, to consider

ZipCode

GmbH as "single establishment in the EU" and consequently Bayerisches Landesamt für Datenschutz

("BayLDA") as "lead supervisory authority."

i) Of ZipCode GmbH being the "Single Establishment in the EU"

26. From the various responses and requests submitted to the records, it is stated that:

i.

Since July 24, 2023, the Worldcoin Foundation acts as the data controller for the data processing operations carried out within the scope of the Worldcoin project;

ii.

On September 1, 2023, the Worldcoin Foundation acquired the entirety of the share capital of ZipCode GmbH;

3

See: translation of document no. 1, attached to the request sent to the CNPD on June 11, 2024 (pages 2335 to 2422 of the records).

4

AVG/2023/1205

iii.

ZipCode GmbH is a subsidiary and the only establishment of the Worldcoin Foundation in the European Economic Area (EEA);

iv.

ZipCode GmbH plays a central role in designing the strategy of the Worldcoin Foundation regarding the capabilities of World ID and in its technical implementation;

v.

ZipCode GmbH made a significant contribution to the verification process of the Orb;

vi.

At the management level, ZipCode GmbH is an integral part of all relevant processing decisions in the context of the Orb verification process;

vii.

ZipCode GmbH is also involved, in particular, with respect to the design of the new configuration of the Secure Multiparty Computation (SMPC) system;

viii.

ZipCode GmbH participated and actively contributed in specific meetings for research, design, and planning of the system (SMPC);

ix.

The new design of the system would not have been adopted without the contribution of ZipCode GmbH, which defined the SMPC system as an effective means of achieving the project's objectives;

x.

ZipCode GmbH provided 134 code contributions on Github for the Open Source World ID Protocol and for the World ID Orb verification mechanism, up to April 2024;

xi.

At the management level, ZipCode GmbH participates in recurring meetings related to the specification of the Orb verification process;

xii.

The system would be fundamentally different if ZipCode GmbH had not participated in the project;

xiii.

ZipCode GmbH is now also actively involved in data processing by the Worldcoin Foundation as part of the SMPC configuration and in this context, ZipCode GmbH acts as a subcontractor on behalf of the Worldcoin Foundation.

27. From the analysis of the process, the evidence, and the statements received, it is verified that the Worldcoin Foundation declared in point 29 of the Administrative Complaint to have acquired ZipCode GmbH in September 2023, stating in point 30 that such company was acquired

in its entirety, as also results from statements made that reached the records in another instance, as better reported above.

28. Given the need for verification and evidentiary demonstration of the alleged facts, as they are essential to the present decision-making determination, the CNPD decided, on May 29, 2024, to notify the Worldcoin Foundation, through its representative, "to proceed with the submission to the records of documentary evidence of the following statement made

4v.

AVG/2023/1205

in the text of the Complaint: "The Worldcoin Foundation acquired, in September 2023, a company based in Bavaria, Germany, specifically at HenkestraBe 91, 91052 Erlangen – ZipCode GmbH ('ZipCode')",

29. In response to such a deliberation from the CNPD, received on June 11, 2024, through a request, the Worldcoin Foundation submitted documentary evidence, namely a notarized copy of the certificate of the acquisition of the share capital of ZipCode GmbH on September 1, 2023, also attaching, in

particular, Reg. Doc. 2252/A/2023, signed by Prof. Dr. Axel Adrian, Notary in Nuremberg, with an office at Königstraße 21, 90402 Nuremberg, as well as Doc. 2997/A/2023, with the "List of shareholders", and whose translation into Portuguese (attached to the case later), with a declaration of responsibility signed by Susana Mendes, certified translator - from which it results that the WorldCoin Foundation acquired the company ZipCode GmbH, as described (cf. Documents attached at pages 2335 to 2422 of the case).

30. The same conviction/demonstration also results from the content of the documents sent by the counterpart BayLDA to this Commission, namely the excerpt from the German commercial register regarding ZipCode GmbH, where it is stated that the sole shareholder is the WorldCoin Foundation, certified notarized (cf. Documents attached at pages 2238 to 2249 of the case).

31. Given that it is established that ZipCode GmbH is wholly owned by the Worldcoin Foundation, it is necessary to assess the concept of establishment.

32. Now, the concept of establishment is not expressly defined in the GDPR; nevertheless, Recital 22, when addressing the term and from which a hermeneutic subsidy can be drawn, states that "Any processing of personal data carried out in the context of the activities of an establishment of a controller or a processor situated in the Union shall be done in accordance with this regulation, regardless of whether the processing itself is carried out in the Union. The establishment presupposes the effective and real exercise of an activity based on a stable facility. The legal form of such establishment, whether it is a branch or a subsidiary with legal personality, is not a determining factor in this context."

33. That said, the understanding that has been addressed regarding the fulfillment of the concept of "establishment" has been filled as the exercise of a real and effective activity, even if minimal, through a stable facility, in the terms that will be better explained in the point below.

34. As better established in the Judgment of October 1, 2015 — Case C-230/14 of the CJEU, referring to the conclusions of the Advocate General, it must be taken into account the existence of "a flexible conception of the concept of establishment, which rules out any formalistic approach according to which a company can only be considered established in the place where it is registered. Thus, to determine whether a company, responsible for data processing, has an establishment, in the sense of Directive 95/46, in a Member State different from the Member State or third country in which it is registered, both the degree of stability of the facility and the reality of the exercise of activities in that other Member State must be evaluated, taking into account the specific nature of the economic activities and services in question. This understanding is especially valid for companies that are dedicated to offering services exclusively on the Internet."

35. It follows, arguing that "it must be considered, taking into account the objective pursued by this directive, which consists of ensuring effective and complete protection of the right to privacy and preventing legislation from being circumvented, that the presence of a single representative may, in certain circumstances, be sufficient to constitute a stable establishment if this representative acts with a sufficient degree of stability through the necessary means for the provision of the specific services in question in the Member State in question." and that, "to achieve the aforementioned objective, it must be considered that the concept of 'establishment', in the sense of Directive 95/46, encompasses any real and effective activity, even if minimal, carried out through a stable facility."

****stable.****

36. Thus, from the facts that have since been established, which are reproduced and detailed in point 26 and following of this document, it can be asserted that ZIPCode GmbH presents itself as the sole establishment of WorldCoin in the European space, being a company wholly owned by WorldCoin, and dedicates its activity exclusively to the processing of data of this controller.

****ii) On cross-border processing and the concept of establishment.****

37. Cross-border processing, under the GDPR, refers to the processing of personal data by a controller or a processor that occurs between different countries or regions. This may involve transfer, access, storage, or any other operation related to personal data that crosses geographical borders (cf. item 23 of Article 4 of the GDPR).

38. This article encompasses two types of processing operations, both revolving around the concept of “establishment”: “a) The processing of personal data that occurs in the context of the activities of establishments in more than one Member State of a controller or a processor in the Union, where the controller or the processor is established in more than one Member State; or b) The processing of personal data that occurs in the context of the activities of a single establishment of a controller or a processor, but which substantially affects, or is likely to substantially affect, data subjects in more than one Member State;”

39. As mentioned above, this concept is not expressly defined in the GDPR, and it has been understood that the concept of “establishment” should be filled as the exercise of a real and effective activity, even if minimal, through a stable installation.

40. This interpretation is particularly relevant for the purposes provided in sub-item b) of item 23 of Article 4 of the GDPR, as from its reading, it will follow that one is dealing with cross-border processing, with the effects provided therein, when the processing of personal data occurs in the context of the activities of a single establishment of a controller.

41. The processing of data must also be carried out in the context of activities of that establishment.

42. Here too, the CJEU considered that even if the European establishment in question does not play a role in the processing of data itself, that processing should be considered as carried out in the context of the activities of the establishment in question when there is an inseparable link between the activities of the establishment and the processing in question.

43. Finally, it is also required that the processing substantially affects, or is likely to substantially affect, data subjects in more than one Member State;

44. Now, it has been demonstrated that there is collection and processing of biometric data by Worldcoin in several States of the European Union, and since these processes are carried out in more than one Member State, this requirement will necessarily also be fulfilled, to the extent that the processing in question affects the data subjects similarly in more than one Member State where WorldCoin is operating.

****iii) On the Lead Supervisory Authority****

45. Having concluded that we are in the presence of cross-border processing, it is necessary to clarify the concept of lead supervisory authority.

46. The identification of a lead supervisory authority is only relevant when a controller or processor carries out cross-border processing of personal data, which is the case here. Simply put, a “lead supervisory authority” is the authority with the primary responsibility for dealing with a cross-border data processing activity and will coordinate any investigation involving the “interested” authorities.

47. Evaluating what is stated in item 16 of Article 4 of the GDPR, sub-item a) refers to a controller with establishments in several Member States, defining “Lead Establishment” as “the place where its central administration is located in the Union.”

****iv) On the Lead Establishment and the Sole Establishment of the Controller in the EU****

48. Given that we are dealing with a Controller that has only one establishment in the EU/EEA, it is necessary to understand, in conclusion, which regime to apply.

49. It is clarified in “Opinion 04/2024” of the European Data Protection Board (EDPB) that this Opinion “only” addresses the concept of “lead establishment” in the sense of sub-item a) of item 16 of Article 4 of the GDPR, which presupposes the existence of several establishments (see in particular paragraph 37).

50. In other words, EDPB Opinion 4/2024 only focuses on the analysis regarding sub-item a) of item 16 of Article 4 of the GDPR, that is, it is argued that when in the presence of a Controller that has more than one establishment in the EU/EEA, it should be understood that when decisions regarding the purposes and means, as well as the power to implement those decisions are exercised outside the

Union, there should not be a lead establishment under the terms of sub-item a) of item 16 of Article 4 of the GDPR, and the mechanism...

****de****

The single window mechanism should not apply, but, the Opinion itself clarifies that this does not prejudice other cases in which the single window mechanism may be applied, as occurs when there is a single establishment of a data controller in the Union.

51. This understanding has already been endorsed by the CJEU in the case *Wirtschaftsakademie Schleswig-Holstein*, as well as in those cases known as *Google vs. Spain* and *Facebook*, where the differences between having or not having an establishment within the Union were clarified, which was the situation with the group, at that time, Facebook (now Meta), which has its European headquarters in Ireland.

52. Furthermore, the GDPR, in its Recital 124, states that “When the processing of personal data takes place in the context of the activities of an establishment of a data controller or a processor in the Union and the data controller or the processor is established in several Member States, or when the processing in the context of the activities of a single establishment of a data controller or a processor in the Union affects or is likely to affect substantially data subjects in various Member States, the supervisory authority of the main establishment or of the single establishment of the data controller or the processor shall act as the lead supervisory authority. (our emphasis)”, from which it is inferred that it is the GDPR itself that understands and clarifies that there is a lead supervisory authority whenever there is a main establishment (when there is more than one establishment in the Union) or when there is a single establishment of the data controller. As is the case at hand.

53. Moreover, this seems to be the dominant position in doctrine, in the interpretation of paragraph 1 of Article 56 of the GDPR, when this provision states that: “(...) the supervisory authority of the main establishment or of the single establishment of the data controller or the processor is competent to act as the lead supervisory authority for cross-border processing carried out by the said data controller or processor in accordance with Article 60.”

54. In conclusion, since we are not in the presence of a “main establishment” in the sense of subparagraph a) of paragraph 16 of Article 4 of the GDPR, but rather of a single establishment, and based on everything that has been said, it can only be concluded that, in these cases where there is a single establishment in the Union, the single window mechanism applies, and consequently, it is where the only establishment of the data controller in the Union is located that the lead supervisory authority is situated, even if data is collected and processed in more than one State of the Union.

v) On the competence of BayLDA

55. Given this reality, only invoked and made known to this Commission at a stage subsequent to that which determined and substantiated Deliberation/2024/137, and having concluded, from the analysis of the evidence collected in the meantime, that ZipCode GmbH is headquartered in Erlangen, Germany, and that it is the only establishment in the EU of the Worldcoin Foundation, and also that, in the absence of other establishments in the European Union, the single window mechanism is applicable, it is understood that from the conjunction of paragraph 1 of Article 51 and paragraph 1 of Article 56 of the GDPR, it results that the Bayerisches Landesamt für Datenschutz (“BayLDA”) is the “lead supervisory authority.”

56. Considering this conclusion, the assessment of the other claims is prejudiced. See Opinion 4/2024 of the EDPB, and the “Guidelines for identifying a controller or processor's lead supervisory authority,” available at https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-identifying-controller-or-processors-lead_pt

****10****

****AVG/2023/1205****

****III. DECISION****

57. In light of the above, the CNPD resolves:

a) To recognize that we are facing a competence incident and, consequently, to identify the Bayerisches Landesamt für Datenschutz (“BayLDA”) as the “Lead Supervisory Authority” for the processing of personal and biometric data on behalf of the Worldcoin Foundation;

b) To declare the CNPD as an Interested Supervisory Authority, in the sense of paragraph 22 of Article 4 of the GDPR;

c) To decide, under the final part of paragraph 1 of Article 60 of the GDPR, to forward all relevant documents and information to the Lead Supervisory Authority.

Approved at the meeting of July 9, 2024

Paula Meira Lourenço (President)

7v.